

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----
MARILYN THOMAS-KING ,

Plaintiff,

-- against --

CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, PO COLE #947728 AND
"JOHN DOES 1-4" PERSONS EMPLOYED BY
THE NEW YORK CITY POLICE DEPARTMENT.Defendants.

X

SUMMONS

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Index No.:

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: Plaintiff designates

: Bronx County

: as the Place of Trial

:

: The Basis of venue is based
on CPLR § 504(3)

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To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the within Verified Complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney within twenty (20) days after the service of summons, exclusive of the day of service or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within Verified Complaint.

Dated: New York, New York
June 20, 2018

/s/

Michael A. Delakas, Esq.

Michael A. Delakas, P.C.

Attorneys for Plaintiff

MARILYN THOMAS-KING

443 Park Avenue South, 1006

New York, New York 10016

(212) 321-0349

To:

CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, PO COLE #947728
AND "JOHN DOES 1-4" PERSONS EMPLOYED BY THE NEW YORK CITY POLICE
DEPARTMENT

SUPREME COURT OF THE STATE OF NEW YORK
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MARILYN THOMAS-KING ,

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VERIFIED COMPLIANT

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Index No.:

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MARILYN THOMAS-KING (hereinafter the “Plaintiff”), by her attorneys, Michael A. Delakas, P.C., complaining against Defendants CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, PO COLE #947728 AND “JOHN DOES 1-4” PERSONS EMPLOYED BY THE NEW YORK CITY POLICE DEPARTMENT., (hereinafter collectively “Defendants”), upon information and belief, alleges as follows:

1. That at all pertinent times, Plaintiff was and is a resident of County of Bronx, New York.

2. That at all pertinent times, Defendant City of New York (hereinafter “CITY”) was and is a municipal corporation incorporated under the laws of New York State.

3. That at all pertinent times, Defendant New York City Police Department (hereinafter “NYPD”) was and is an agency of Defendant CITY.

4. That at all pertinent times, Defendant PO Cole #947728 (hereinafter “COLE”) was and is an employee of Defendant NYPD.

5. That at all pertinent times, Defendants “John Does 1-4” (hereinafter the “Officers”) were and are employees of Defendant NYPD.

6. That at all pertinent times, Defendant CITY operated, and presently operates Defendant NYPD.

7. That at all pertinent times, Defendant CITY controlled, and presently controls Defendant NYPD.

8. That at all pertinent times, Defendant CITY managed, and presently manages Defendant NYPD.

9. Plaintiff filed a Notice of Claim (*see* Exhibit “A” annexed hereto) in accordance with General Municipal Law Sections 50(e) and (I) on or about October 10, 2017. The Notice of Claim set forth the name and address of Plaintiff, his attorneys, the nature of the claim, the time and place where it arose, and the items and amounts of damages claimed.

10. At least thirty (30) days has passed since service of the Notice of Claim, and payment of the claim has been either refused or neglected.

11. A hearing was conducted pursuant to General Municipal Law Section 50(h) on or about January 3, 2018.

12. This action is being commenced within one year and ninety days of the incident which gives rise to the action.

13. On or about August 11, 2017 at or near the location known at the premises known as 671 Westchester Avenue, Apt. 16f, Bronx County, City and State of New York at approximately 6:00AM, Defendants failed to produce a search warrant and entered Claimant’s apartment without permission. Defendants secured Claimant and her disabled sister and proceeded to search the house. During aforementioned search, Defendants did not take reasonable care in searching the apartment causing damage and destroying furniture, electronic devices and other household items. Defendants did not arrest or prosecute Claimant after the

apartment was searched. Despite Defendants' lack of probable cause to search Claimant's apartment, Defendants maliciously destroyed Claimant's property.

14. At all times during the aforesaid illegal and improper arrest of Plaintiff, Plaintiff was in the custody of Defendants.

15. That Plaintiff was illegally and improperly arrested, by Defendants through no fault or negligence of her own.

16. As a result of Defendants' actions, Plaintiff was caused to suffer significant, severe, psychological and emotional suffering, humiliation and embarrassment, all of which continue until this day.

**AS AND FOR A FIRST CAUSE OF ACTION
FOR FALSE ARREST AND IMPRISONMENT**

17. The allegations set forth in paragraphs "1" through "16" inclusive are incorporated herein as if fully set forth.

18. Defendants intended to cause the arrest, seizure and imprisonment of Plaintiff without a lawful warrant and without probable cause.

19. Defendants knew, or should have known, that the conduct engaged in would result in the false imprisonment of Plaintiff.

20. Plaintiff was aware of such confinement and did not consent to said confinement.

21. In verbally and physically resisting Defendants' acts described above, Plaintiff did not consent to Defendants' confinement of her.

22. The aforementioned confinement was not privileged in any way and was without legal justification.

23. Defendants CITY and NYPD are responsible and liable for the acts of Defendants done within the scope of their employment under the doctrine of *respondeat superior*.

24. As a direct and proximate cause of Defendants' false arrest and seizure of Plaintiff, Plaintiff was caused to suffer great pain and mental anguish, great humiliation, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

25. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

**AS AND FOR A SECOND CAUSE OF ACTION
FOR ASSAULT AND BATTERY**

26. The allegations set forth in paragraphs "1" through "25" inclusive are incorporated herein as if fully set forth.

27. On or about August 11, 2017, at or near the location known as the corner of 671 Westchester Avenue, Apt. 16f, Bronx County, City and State of New York at approximately 6:00AM, Defendants intended to make bodily contact with Plaintiff.

28. Plaintiff was aware of such bodily contact and did not consent to said bodily contact.

29. The aforesaid bodily contact by Defendants against Plaintiff was offensive to Plaintiff.

30. Defendants CITY and NYPD are responsible and liable for the acts of the Defendants done within the scope of their employment under the doctrine of *respondeat superior*.

31. As a result of Defendants' actions, Plaintiff was caused to suffer significant, severe, psychological and emotional suffering, humiliation and embarrassment, all of which continue until

this day in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

32. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

AS AND FOR A THIRD CAUSE OF ACTION
INTENTIONAL INFLICTION OF EMOTION DISTRESS

33. The allegations set forth in paragraphs "1" through "32" inclusive are incorporated herein as if fully set forth.

34. That Defendants intended to make offensive, bodily contact with Plaintiff.

35. Defendants did in fact make offensive, bodily contact with Plaintiff.

36. Said offensive, bodily contact was extreme and outrageous, which exceeded all bounds usually tolerated by a decent society.

37. Such extreme and outrageous conduct caused Plaintiff to suffer severe and debilitating mental anguish which had a disabling effect on Plaintiff.

38. Defendants NYC and NYPD are responsible for and liable for the acts of Defendants done within the scope of their employment through the doctrine of *respondeat superior*.

39. As a direct and proximate cause of Defendants' intentional infliction of emotional distress of Plaintiff, Plaintiff was caused to suffer great pain and mental anguish, great humiliation, and further pecuniary damages and legal costs, all to the Plaintiff's damages in the amount which exceeds the jurisdictional limitations of the courts and in an amount to be determined at a trial of this action.

40. That the conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders the Defendants liable to Plaintiff for punitive damages.

**AS AND FOR A FOURTH CAUSE OF ACTION
FOR NEGLIGENT HIRING, TRAINING, RETENTION AND SUPERVISION**

41. The allegations set forth in paragraphs “1” through “40” inclusive are incorporated herein as if fully set forth.

42. That Defendants CITY and NYPD failed to exercise reasonable care in hiring Officers; therefore, breaching their duty to Plaintiff as well as to the public to exercise reasonable care in their hiring of employees.

43. That Defendants CITY and NYPD should have known of the propensity of the Officers to commit injurious acts.

44. Defendants CITY and NYPD were negligent in failing to properly train and supervise its employees, more specifically Defendants.

45. Defendants CITY and NYPD are responsible and liable for the acts of Defendants done within the scope of their employment under the doctrine of *respondeat superior*.

46. As a result of Defendants’ actions, Plaintiff was caused to suffer significant, severe, painful and permanent personal injuries, psychological and emotional suffering, humiliation and embarrassment, all of which continue until this day in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

47. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders the Defendants liable to Plaintiff for punitive damages.

**AS AND FOR A SIXTH CAUSE OF ACTION
FOR NEGLIGENCE**

48. The allegations set forth in paragraphs “1” through “47” inclusive are incorporated herein as if fully set forth.

49. Defendants’ actions in causing the aforesaid assault, battery, arrest, seizure, imprisonment and malicious prosecution of Plaintiff were in breach of the duty of due care owed to Plaintiff. Defendants acted negligently and in disregard for the procedures and safeguards, which are the standard for the arrest and lawful stop of a citizen, in arresting Plaintiff in the absence of reasonable suspicion or probable cause. Defendants further breached their duty of care to investigate before affecting the stop and seizure of a citizen and in their continued prosecution of Plaintiff.

50. That Defendants CITY and NYPD are responsible and liable for the acts of the Defendants done within the scope of their employment under the doctrine of *respondeat superior*.

51. As a direct and proximate cause of Defendants’ negligence, Plaintiff was caused to suffer significant, severe, painful and permanent personal injuries, psychological and emotional suffering, humiliation and embarrassment, all of which continue until this day in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

52. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders the Defendants liable to Plaintiff for punitive damages.

INJURY AND DAMAGES

As a result of the acts and conduct complained of herein, Plaintiff has suffered and will continue to suffer, emotional pain, suffering, permanent disability, inconvenience, injury to her reputation, loss of wages, loss of employment advancement/promotion, loss of enjoyment of life, loss of liberty and other non-pecuniary losses. Plaintiffs have further experienced severe emotional and physical distress and loss of love, services, consortium, affection, society and companionship.

WHEREFORE, Plaintiffs respectfully request that judgment be entered:

1. Awarding Plaintiffs compensatory damages in a full and fair sum to be determined by a jury;
2. Awarding Plaintiffs punitive damages in an amount to be determined by a jury;
3. Awarding Plaintiffs interest from August 11, 2017;
4. Awarding Plaintiffs reasonable attorney's fees pursuant to 42 USC § 1988;
5. Judgment against all Defendants individually and collectively, on all causes of action, in an amount which exceeds the jurisdiction limitations of all lower courts and in an amount to be determined at the trial of this action, together with all costs and interest; and;
6. Granting such other and further relief as to this Court deems proper.

Dated: June 20, 2018
New York, New York

_____/s/_____
Michael A. Delakas, Esq.
Michael A. Delakas, P.C.
Attorneys for Plaintiff
MARILYN THOMAS-KING
443 Park Avenue South, 1006
New York, New York 10016
(212) 321-0349

To:
CITY OF NEW YORK,
100 Church Street
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, New York 10038

PO COLE #947728
1 Police Plaza
New York, New York 10038

NEW YORK CITY POLICE OFFICERS "JOHN DOES "1- 4", PERSONS EMPLOYED BY
NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, New York 10038

VERIFICATION

STATE OF NEW YORK)
) ss:
COUNTY OF NEW YORK)

Michael A. Delakas, the undersigned, am an attorney duly admitted to practice law in this State and the Federal Courts of the Southern District of New York, and affirm the following to be true under penalty of perjury:

I am a member of Michael A. Delakas, PC, the trial attorneys for the attorney of record for the Plaintiff.

I have read the foregoing COMPLAINT, and know the allegations of fact stated therein, that the stated allegations of fact are true to my own knowledge except as to those allegations stated to be on information and belief, and as to those matters, I believe them to be true.

The reason I make this verification instead of the Plaintiff is that Plaintiff is not presently within the county where Michael A. Delakas, PC. maintains its offices.

Dated: New York, New York
June 20, 2018

_____/s/_____
Michael A. Delakas, Esq.

